

The small claims court records establish that Mendez brought two small claims actions against Ponce. Both of them were explicitly based on a car accident that allegedly occurred on October 20, 2020. The second action, case No. 21SC085637, proceeded to a judgment. After hearing testimony and viewing video provided by Mendez, the small claims court determined in October 2021 that “[s]ince it cannot be determined that Defendant hit Plaintiff’s car, Plaintiff’s claim for property damages and personal injury damages is denied.” The resulting notice of entry of judgment states, “Defendant does not owe plaintiff any money on plaintiff’s claim.” (See exhibits A-D to Ponce’s request for judicial notice.) Mendez filed his complaint in this limited civil action a few months later.

Both of Mendez’s prior small claims actions and the current civil lawsuit are based entirely on the alleged October 20, 2020 auto accident. The same primary right is involved. The court finds that the judicially noticed material shows that this lawsuit is barred by the collateral estoppel effect of the small claims judgment under the *Pitzen* and *Bailey* decisions and the claim preclusion effect of the small claims judgment under the *Allstate* decision.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.) Mendez has not met this burden. He has filed two separate opposition briefs. The first, filed on March 17, argues that Ponce has failed to show that the small claims actions resulted in a final adjudication that would bar this action. Contrary to Mendez’s argument, case no. 21SC085637 proceeded to a judgment against Mendez. The first opposition does not seek leave to amend; it simply argues that the demurrer should be overruled and demands that the default judgment be reinstated. The second opposition, filed on March 18, does not address the demurrer but instead attempts to reargue the motion to set aside default and motion to dismiss that was already decided in September 2025.

Because Mendez has not demonstrated a reasonable possibility of amending the complaint to overcome the preclusive effect of the small claims judgment against him in case No. 21SC085637, leave to amend is denied.

CONCLUSION

Ponce’s request for judicial notice is granted in part and denied in part.

Ponce’s demurrer to the complaint is sustained without leave to amend.

The case management conference scheduled for May 26, 2026 is vacated.

The court will prepare the order.

Calendar Line 2

Case Name: Sampath Putta v. Leslie Henry et al.

Case No.: 24CV452177

This is an action brought by self-represented plaintiff Sampath Ram Kumar Putta (Putta), arising from the alleged failure to disclose an existing lien on real property purchased by Putta located at 1268 McGuinness Avenue, San Jose, CA, 95127 (the Property). The original defendants were Chicago Title Company (CTC), Tiffany Dimond, Elina Lee, Michael Tran, and Leslie Henry.

Putta filed a small claims action against Lee (and attempted, but failed, to serve Henry in the same case) in 2023, based on a “lien undisclosed on the Property.” (Santa Clara County Superior Court, case no. 23SC090168 (the “Small Claims Matter”). The small claims court dismissed Henry and entered judgment in October 2023 in favor of Lee, after hearing testimony from Tran as a witness.

The original complaint in this case was filed in November 2024. A first amended complaint (FAC) was filed in February 2025, alleging three causes of action: (1) negligence (against CTC and Dimond); (2) fraudulent concealment (against all defendants); and (3) breach of fiduciary duty (against Tran and Lee).

CTC and Dimond filed a demurrer to the FAC’s first and second causes of action and a motion to strike portions of the FAC. Lee filed a separate demurrer to the second and third causes of action. And Tran filed a separate demurrer to the second and third causes of action. The court (Judge Chung) sustained CTC and Dimond’s demurrer with leave to amend. The court granted in part and denied in part their motion to strike. The court sustained Lee’s demurrer without leave to amend. The court overruled Tran’s demurrer to the second and third causes of action as alleged against him, noting that he failed to support his arguments with legal authority and relied almost entirely on extrinsic evidence. (See Sept. 2, 2025 order at pp. 17:7-18:15.)

The court takes judicial notice of the October 11, 2023 minute order and judgment from the small claims court and Judge Chung’s September 2, 2025 order on its own motion. (Evid. Code, § 452, subd. (d).)

The operative second amended complaint (SAC) was filed in September 2025. The SAC alleges five causes of action: (1) negligence (against CTC and Dimond); (2) negligent representation (against CTC and Dimond); (3) fraudulent concealment (against CTC and Dimond); (4) fraudulent concealment (against Tran); and (5) breach of fiduciary duty (against Tran). Putta later dismissed CTC and Dimond as defendants, leaving Tran as the only defendant.

At issue is self-represented Tran’s demurrer to the SAC’s fourth and fifth causes of action. This demurrer was filed in November 2025. Putta filed an opposition at the end of April 2026. After the opposition was filed, Tran filed an “amended” demurrer and request for judicial notice on May 8, 2026. Because parties have no ability to amend filed motions without leave of court, the court has not considered Tran’s amended papers.